

Gajendra S/O. Anil Singhvi And Ors vs The State Of Maharashtra on 6 July, 2021

Author: N. J. Jamadar

Bench: S. S. Shinde, N. J. Jamadar

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Santosh

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION
CRIMINAL APPLICATION NO. 255 OF 2021

Gajendra s/o Anil Singhvi & ors.	...Applicants
Versus	
The State of Maharashtra & anr.	...Respondents

Mr. S. S. Gangakhedkar, a/w Mr. V. V. Kabade, for the
Applicants.

Mr. K. V. Saste, APP for the State/Respondent no.1.

Mr. R. R. Karpe, for respondent no.2.

Ms. Gunjan Gandhi, Respondent no.2 present through
VC and interacted.

CORAM: S. S. SHINDE &
N. J. JAMADAR, JJ
DATED: 6th JULY, 2021
(Through V.C.)

JUDGMENT :

PER : N. J. JAMADAR, J.

1. Rule. Rule made returnable forthwith and, with the consent of the Counsels for the parties, heard finally.

2. This is an application under Section 482 of the Code of Criminal Procedure, 1973 ("the Code") to quash Regular Criminal Case No.1436 of 2017, arising out of CR No.84 of 2017, registered at Bhalander Police Station and DV Case No.152/DV/ 2017, pending on the file of the learned Judicial Magistrate, First Class, Thane.

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3. Shorn of unnecessary details the background facts can be stated as under:

(a) The marriage of applicant no.1 Gajendra was solemnized with respondent no.2 Gunjan on 18th December, 2015. Applicant nos.2 and 3 are the parents and applicant no.4 Maluri is the sister of applicant no.1. Since inception the marital life of applicant no.1 and respondent no.2 was afflicted with discord. Respondent no.2 alleged that the applicants made an unlawful demand of money and subjected her to cruelty in order to coerce her to meet the said unlawful demand. She was turned out of her matrimonial home. She was relieved of the ornaments and valuable articles. Hence, with aforesaid allegations respondent no.2 lodged report at Bhalander Police Station. Crime was registered at CR No.84 of 2017 for the offences punishable under Sections 498(A), 406, 323, 504, 506 read with 34 of the Indian Penal Code, 1860 ("the Penal Code").

An application for protection under Protection of Women From Domestic Violence Act, 2005, bearing No.152/DV/2017 has also been filed by respondent no.2.

4. The applicants claim that during the intervening period, the parties have amicably resolved all the disputes. Applicant no.1 and respondent no.2 have also agreed to dissolve the 16-APL255-2021.DOC marriage by mutual consent. Consent Terms have, thus, been filed. Accordingly they have filed a petition for divorce by mutual consent under Section 13(B) of the Hindu Marriage Act, 1955. Hence this application.

5. The parties have filed the Consent Terms (Exhibit-D). Paragraphs 6, 7, 8 and 9 of the Consent Terms read as under:

"6. The applicant no.1 and respondent no.2 shall file mutual divorce petition U/s. 13(B)(1) & (2) of Hindu Marriage Act, 1955 before the Hon'ble Court of CJSD, Thane.

7. The respondent no.2 shall extend full cooperation in getting the proceedings quashed through Sec.482 of Cr.P.C. for quashing of RCC No.1436/2017 in FIR No.84/2017 under Section 498(a), 406, 323, 504, 506 & 34 of the IPC at instance Bhalander Police Station, Bhalander (W), pending before Hon'ble JMFC Court Thane and as well as Case No.152/DV/2017 which is pending before Hon'ble JMFC Court Thane which the parties would be filing soon after these proceedings are verified and filed, which would be filed by Petitioners as mutually agreed.

8. The parties shall mutually file the quashing petition before the Hon'ble Bombay High Court to get said case quashed being RCC No.1436/2017 in FIR No.84/2017 under Section 498(a), 406, 323, 504, 506 & 34 of the IPC at instance Bhalander Police Station, Bhalander (W), pending before Hon'ble JMFC Court Thane. The applicant no.1 shall give her consent to all other accused in the said case. The parties shall also file the certified order copies of the said disposed cases before this Hon'ble Court.

9. The applicant no.1 husband have agreed to give and respondent no.2 wife have agreed to take a lumpsum amount one time mutualll agreed permanent alimonl of Rs.9,50,000/- (Rupees Nine Lakhs Fiftl Thousands onll) to the applicant no.1 wife towards settlement against her claims of marriage expenses, if anl, and for her past, present and future claim of 16-APL255-2021.DOC maintenance or alimonl, bl whatever nomenclature it is known. The said Rs.9,50,000/- (Rupees Nine Lakhs Fiftl Thousands onll) shall be given bl the respondent no.2 to the applicant no.1 in following parts:

(a) The applicant no.1 has paid the sum of Rs.4,75,000/- (Rupees Four Lakhs Seventl-fve Thousands onll) to the respondent no.2 bl demand draft in favour Gunjan Dilip Gandhi at the time of fling of the mutual divorce petition and applicant no.1 shall acknowledge the receipt of the same.

(b) The applicant no.1 shall give the balance sum of Rs.Rs.4,75,000/- (Rupees Four Lakhs Seventl-

fve Thousands onll) to the respondent no.2 bl demand draft in favour Gunjan Dilip Gandhi on the dal of divorce decree i.e. at the time of fling of "NO Claims Affdavits" before the Hon'ble Court before whom the said mutual divorce petition is fled."

6. Respondent no.2 Mrs. Gunjan appeared before the Court through Video Conferencing. She was identifed bl Ms. Karpe, the learned Counsel for respondent no.2.

7. Respondent no.2 submitted before the court that she has voluntarill settled the dispute with the applicants out of her own volition. She has agreed to the terms of settlement recorded in the Consent Terms. She and applicant no.1 have decided to dissolve the marriage bl mutual consent. There is no coercion or duress. In view of the settlement, she does not intend to prosecute the applicants and the prosecution mal thus be quashed.

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8. From the perusal of the material on record, it becomes evident that the genesis of the prosecution was the matrimonial dispute between the applicants and respondent no.2. The parties have decided to settle the matrimonial dispute. The terms of the settlement have been incorporated in the Consent Terms (Exhibit-D). Respondent no.2 admits the contents thereof and categoricalll informs the Court that she has voluntarill agreed for the amicable resolution of the dispute in accordance with the said terms.

9. In the aforesaid backdrop, in our view, the continuation of the prosecution would serve no fruitful purpose. With the settlement of the dispute, the possibilitl of the prosecution ending in conviction is extremell remote. As the applicant no.1 and respondent no.2 have decided to amicabl part wals and move in life, the continuation of the prosecution would cause grave prejudice to the parties and also constitute an abuse of the process of the Court. Therefore, in order to secure the ends of justice and prevent the abuse of the process of the Court, we are inclined to allow the application. Since the

genesis of the prosecution is in the matrimonial dispute, the exercise of jurisdiction under Section 482 of the Code would be justifiable.

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10. Hence the following order:

: ORDER :

(i) The application stands allowed in terms of praler Clause (B).

(ii) RCC No.1436 of 2017, arising out CR No.84/2017 registered with Bhalander Police Station and DV Case No.152/DV/2017, pending on the fle of the Judicial Magistrate, First Class, Thane, stand quashed and set aside.

11. Rule made absolute in aforesaid terms.

[N. J. JAMADAR, J.]

[S. S. SHINDE, J.]